

STATE OF MINNESOTA
COUNTY OF HENNEPIN

Filed in District Court
State of Minnesota

DISTRICT COURT
FOURTH JUDICIAL DISTRICT
Case Type: Contract

2026 JUL 20 A 8:44

Yibiao Lu and Jie Hu,

Plaintiffs,

v.

Fire Insurance Exchange, by and through its
attorney-in-fact, Fire Underwriters Association
(d/b/a Farmers Insurance),

Defendant.

Court File No. 27-CV-26-11606
Judge: The Honorable Jamie L. Anderson

**NOTICE OF MOTION AND
MOTION FOR RELATION-BACK
OF FILING DATE**

**PLAINTIFFS' NOTICE OF MOTION AND MOTION TO DEEM THE
CORRECTED COMPLAINT FILED AS OF THE ORIGINAL FILING DATE
(Relation-Back of Filing Date — Minn. Gen. R. Prac. 11.05)**

NOTICE OF MOTION

TO: Defendant Fire Insurance Exchange and its attorney-in-fact, Fire Underwriters Association
(d/b/a Farmers Insurance), and its counsel of record:

PLEASE TAKE NOTICE that Plaintiffs Yibiao Lu and Jie Hu will bring the following motion
before the above-named Court. Because this is a nondispositive procedural motion, Plaintiffs
request that the Court decide it on the written submissions without a hearing pursuant to Minn.

Gen. R. Prac. 115.04. If the Court sets a hearing, it will be held at the Hennepin County

Government Center, 300 South Sixth Street, Minneapolis, Minnesota, on _____,

2026, at _____ .m., or as soon thereafter as the matter may be heard, before the Honorable

Jamie L. Anderson.

MOTION FOR RELATION-BACK OF FILING DATE (Minn. Gen. R. Prac. 11.05)

Plaintiffs Yibiao Lu and Jie Hu, appearing pro se, respectfully move the Court, pursuant to Minn. Gen. R. Prac. 11.05, for an order deeming their corrected Complaint — refiled with restricted identifiers removed in response to the Court Administrator's Notice of Noncompliance — filed as of the original filing date of this action, and specifically:

1. That the corrected Complaint's filing date relate back to July 8, 2026, the original filing date of the Complaint as reflected in the Minnesota Court Records Online (MCRO) case record and on the court filing receipt issued to Plaintiffs; and
2. For such other and further relief as the Court deems just and equitable.

This motion is based on the accompanying memorandum, the files and records in this action, and Minn. Gen. R. Prac. 11.05. Plaintiffs have contemporaneously (a) refiled the corrected Complaint with the restricted identifiers redacted, (b) filed the completed Confidential Information Form (Form 11.1 / CON111) supplying the redacted identifiers, and (c) paid the applicable motion fee under Minn. Stat. § 357.021, subd. 2(4).

MEMORANDUM IN SUPPORT

A. Background.

Plaintiffs commenced this action against Defendant arising out of the denial of a homeowner's insurance claim for hail damage. The Complaint was filed with the Court on July 8, 2026, as reflected in the Minnesota Court Records Online (MCRO) case record and on the court filing receipt issued to Plaintiffs. Separately, on July 13, 2026, the Court Administrator filed and issued a Notice of Noncompliance under Minn. Gen. R. Prac. 11, stating that the Complaint contained

restricted identifiers as defined by Rule 11.01(a). The Notice was served on Plaintiffs by U.S. Mail; the envelope bears a postmark of July 14, 2026.

The only identifiers at issue are the insurance policy number and the associated claim numbers, which Rule 11.01(a) treats as “financial account numbers” because that definition expressly includes a number assigned to an “insurance ... account.” Plaintiffs did not include any Social Security number, employer identification number, or taxpayer identification number in the Complaint.

Promptly upon receiving the Notice, Plaintiffs cured the noncompliance in the manner Rule 11 directs: they refiled the Complaint with the policy and claim numbers redacted, and they filed a Confidential Information Form (Form 11.1) supplying the full identifiers to the Court on a confidential basis. Plaintiffs bring this motion so that the corrected Complaint is treated as filed as of the original filing date.

B. This motion is timely.

The Notice was served by mail; Minn. R. Civ. P. 6.01(e) therefore adds three days to the three-day response period the Notice prescribes. Counting from the date of the mailed Notice and adding the mail days, and extending the deadline past the intervening weekend under Rule 6.01, Plaintiffs' deadline to cure and to move for relation-back falls on or about Monday, July 20, 2026. This motion, filed together with the corrected Complaint and Form 11.1, is timely.

C. The Court should relate the filing date back in the interests of justice.

Rule 11.05 provides that, where the filer timely pays the required fee and timely requests relation-back, “the court may, in the interests of justice, order that the filing date of the properly

submitted document(s) relate back to the filing date of the original document(s).” Each condition is met, and the equities strongly favor relation-back:

- i. The defect was minor and administrative. The redactions concern only a policy number and claim numbers; no substantive allegation was changed, and the corrected Complaint is identical to the original in every other respect.
- ii. There is no prejudice to Defendant. Defendant is Plaintiffs' own insurer and already possesses the very policy and claim numbers at issue. Defendant gains nothing, and loses nothing, from relation-back.
- iii. Defendant already had timely notice of the action. Under Minn. R. Civ. P. 3.01, a Minnesota civil action is commenced by service of the Summons and Complaint on the defendant, not by filing. Plaintiffs served Defendant, so Defendant has had notice of the claims independent of the filing date, and relation-back merely aligns the administrative file date with the action Plaintiffs already commenced.
- iv. Plaintiffs acted promptly and in good faith. Plaintiffs are self-represented, promptly cured the identified defect upon receiving the mailed Notice, supplied the identifiers on the confidential form, and paid the motion fee.

Relating the corrected Complaint's filing date back to the original filing date will avoid any dispute over the timing of the filing while fully satisfying the public-access purpose of Rule 11, because the restricted identifiers are now confined to the confidential Form 11.1.

CONCLUSION

For the foregoing reasons, Plaintiffs respectfully request that the Court enter an order deeming the corrected Complaint filed as of July 8, 2026, the original filing date of the Complaint, and granting such further relief as is just.

Plaintiffs declare under penalty of perjury under the laws of the State of Minnesota that attached as Exhibit A is a true and correct copy of the filing receipt issued to Plaintiffs on July 8, 2026, reflecting payment of the filing fee in this action (Court File No. 27-CV-26-11606), and that the factual statements set forth in this motion are true and correct. Minn. Stat. § 358.116.

Dated: July 19, 2026.

Respectfully submitted,



Yibiao Lu, Plaintiff pro se
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Jie Hu, Plaintiff pro se
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EXHIBIT A

Court Filing Receipt — July 8, 2026

OFFICIAL RECEIPT

Hennepin County Conciliation Court
Minneapolis City Hall and Courthouse
350 South 5th Street, Rm. #306
Minneapolis, MN 55415

Payor
LU, Yibiao
16090 21st AVE N
Plymouth, MN 55447

Receipt No.
CC27-2026-00520

Transaction Date
07/08/2026

Description	Amount Paid
LU, Yibiao 27-CV-26-11606	
Civil Filing Fee	322.00
Jury Fee	100.00
SUBTOTAL	422.00
Remaining Balance Due: \$0.00	
PAYMENT TOTAL	422.00
Debit/Credit Card (Ref #891299)	
Tendered	422.00
Total Tendered	422.00
Change	0.00
07/08/2026 02:12 PM	Cashier Station 27CO4
	Audit 1678136328

OFFICIAL RECEIPT

MCRO

Loren Court
Associate

EXHIBIT A